

SANHITA360

CHAPTER IV

GENERAL EXCEPTIONS

IPC Sections 76-106 and BNS Sections 14-44

Mistake, accident, necessity, capacity, consent and private defence

ACADEMIC NOTE

This material explains the statutory General Exceptions and the transition from the Indian Penal Code, 1860 to the Bharatiya Nyaya Sanhita, 2023. It is educational material, not legal advice.

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Chapter Overview

General Exceptions identify circumstances in which conduct that would otherwise satisfy an offence is justified or excused. IPC Sections 76-106 correspond section-for-section to BNS Sections 14-44. The chapter covers mistake of fact, judicial acts, accident, necessity, infancy, unsoundness of mind, intoxication, consent, good-faith benefit, compulsion, slight harm and the right of private defence.

The correspondence is sequential: subtract 62 from the IPC section number to locate the matching BNS section. The defence still depends on proof of every statutory condition; a label such as accident, consent or self-defence is not enough.

Learning Objectives

- Distinguish mistake of fact from mistake of law.
- Apply accident and necessity only when every statutory condition is proved.
- Explain infancy, unsoundness of mind and involuntary intoxication.
- Assess valid consent and good-faith acts for another person's benefit.
- Explain compulsion, slight harm and their limits.
- Determine when private defence begins, continues and extends to causing death.
- Compare IPC Sections 76-106 with BNS Sections 14-44.

Master IPC-to-BNS Map

IPC provision	BNS provision	Subject
Sections 76-81	Sections 14-19	Legal duty, judicial acts, mistake, accident and necessity.
Sections 82-86	Sections 20-24	Infancy, unsoundness of mind and intoxication.
Sections 87-92	Sections 25-30	Consent and acts done for another person's benefit.
Sections 93-95	Sections 31-33	Good-faith communication, compulsion and slight harm.
Sections 96-106	Sections 34-44	Right of private defence of body and property.

Section-by-Section Statutory Study

Each entry reproduces the attached IPC content in readable form and identifies the corresponding BNS section. The BNS substantially carries forward this sequence with modernised drafting.

Section 76 IPC: Act done by a person bound, or by mistake of fact believing himself bound, by law

Corresponding provision: Section 14 BNS.

Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

Illustrations

(a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence. (b) A, an officer of a Court of Justice, being ordered by that Court to arrest Y, and after due enquiry, believing Z to be Y, arrests Z. A has committed no offence

Section 77 IPC: Act of Judge when acting judicially

Corresponding provision: Section 15 BNS.

Nothing is an offence which is done by a Judge when acting judicially in the exercise of any power which is, or which in good faith he believes to be, given to him by law

Section 78 IPC: Act done pursuant to the judgment or order of Court

Corresponding provision: Section 16 BNS.

Nothing which is done in pursuance of, or which is warranted by the judgment or order of, a Court of Justice; if done whilst such judgment or order remains in force, is an offence, notwithstanding the Court may have had no jurisdiction to pass such judgment or order, provided the person doing the act in good faith believes that the Court had such jurisdiction

Section 79 IPC: Act done by a person justified, or by mistake of fact believing himself, justified, by law

Corresponding provision: Section 17 BNS.

Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.

Illustration

A sees Z commit what appears to A to be a murder. A, in the exercise, to the best of his judgment exerted in good faith, of the power which the law gives to all persons of apprehending murderers in the fact, seizes Z, in order to bring Z before the proper authorities. A has committed no offence, though it may turn out that Z was acting in self-defence

Section 80 IPC: Accident in doing a lawful act

Corresponding provision: Section 18 BNS.

Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.

Illustration

A is at work with a hatchet; the head flies off and kills a man who is standing by. Here, if there was no want of proper caution on the part of A, his act is excusable and not an offence

Section 81 IPC: Act likely to cause harm, but done without criminal intent, and to prevent other harm

Corresponding provision: Section 19 BNS.

Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Explanation. It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

Illustrations

(a) A, the captain of a steam vessel, suddenly, and without any fault or negligence on his part, finds himself in such a position that, before he can stop his vessel, he must inevitably run down a boat B, with twenty or thirty passengers on board, unless he changes the course of his vessel, and that, by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear. Here, if A alters his course without any intention to run down the boat C and in good faith for the purpose of avoiding the danger to the passengers in the boat B, he is not guilty of an offence, though he may run down the boat C by doing an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him in incurring the risk of running down C. (b) A, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act, A is not guilty of the offence

Section 82 IPC: Act of a child under seven years of age

Corresponding provision: Section 20 BNS.

Nothing is an offence which is done by a child under seven years of age

Section 83 IPC: Act of a child above seven and under twelve of immature understanding

Corresponding provision: Section 21 BNS.

Nothing is an offence which is done by a child above seven years of age and under twelve, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion

Section 84 IPC: Act of a person of unsound mind

Corresponding provision: Section 22 BNS.

Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law

Section 85 IPC: Act of a person incapable of judgment by reason of intoxication caused against his will

Corresponding provision: Section 23 BNS.

Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law; provided that the thing which intoxicated him was administered to him without his knowledge or against his will

Section 86 IPC: Offence requiring a particular intent or knowledge committed by one who is intoxicated

Corresponding provision: Section 24 BNS.

In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will

Section 87 IPC: Act not intended and not known to be likely to cause death or grievous hurt, done by consent

Corresponding provision: Section 25 BNS.

Nothing which is not intended to cause death, or grievous hurt, and which is not known by the doer to be likely to cause death or grievous hurt, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, to any person, above eighteen years of age, who has given consent, doer to be likely to cause to any such person who has consented to take the risk of that harm.

Illustration

A and Z agree to fence with each other for amusement. This agreement implies the consent of each to suffer any harm which, in the course of such fencing, may be caused without foul play; and if A, while playing fairly, hurts Z, A commits no offence

Section 88 IPC: Act not intended to cause death, done by consent in good faith for person's benefit

Corresponding provision: Section 26 BNS.

Nothing, which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer that harm, or to take the risk of that harm.

Illustration

A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith, Z's benefit, performs that operation on Z, with Z's consent. A has committed no offence

Section 89 IPC: Act done in good faith for benefit of child or insane person, by or by consent of guardian

Corresponding provision: Section 27 BNS.

Nothing which is done in good faith for the benefit of a person under twelve years of age, or of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person: Provided—

Provisos. First.—That this exception shall not extend to the intentional causing of death, or to the attempting to cause death; Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity; Thirdly.—That this exception shall not extend to the voluntary causing of grievous hurt, or to the attempting to cause grievous hurt, unless it be for the purpose of preventing death or grievous hurt, or the curing of any grievous disease or infirmity; Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustration

A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. A is within the exception, inasmuch as his object was the cure of the child

Section 90 IPC: Consent known to be given under fear or misconception

Corresponding provision: Section 28 BNS.

A consent is not such a consent as is intended by any section of this Code, if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception; or Consent of insane person.—if the consent is given by a person who, from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or Consent of child.—unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age

Section 91 IPC: Exclusion of acts which are offences independently of harm cause

Corresponding provision: Section 29 BNS.

The exceptions in sections 87, 88 and 89 do not extend to acts which are offences independently of any harm which they may cause, or be intended to cause, or be known to be likely to cause, to the person giving the consent, or on whose behalf the consent is given.

Illustration

Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence “by reason of such harm”; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act

Section 92 IPC: Act done in good faith for benefit of a person without consent

Corresponding provision: Section 30 BNS.

Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit: Provided—

Provisos. First.—That this exception shall not extend to the intentional causing of death, or the attempting to cause death; Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity; Thirdly.—That this exception shall not extend to the voluntary causing of hurt, or to the attempting to cause hurt, for any purpose other than the preventing of death or hurt; Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustrations

(a) Z is thrown from his horse, and is insensible. A, a surgeon, finds that Z requires to be trepanned. A, not intending Z's death, but in good faith, for Z's benefit, performs the trepan before Z recovers his power of judging for himself. A has committed no offence. (b) Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound. A has committed no offence. (c) A, a surgeon, sees a child suffer an accident which is likely to prove fatal unless an operation be immediately performed. There is not time to apply to the child's guardian. A performs the operation in spite of the entreaties of the child, intending, in good faith, the child's benefit. A has committed no offence. (d) A is in a house which is on fire, with Z, a child. People below hold out a blanket. A drops the child from the house stop, knowing it to be likely that the fall may kill the child, but not intending to kill the child, and intending, in good faith, the child's benefit. Here, even if the child is killed by the fall, A has committed no offence.

Explanation. Mere pecuniary benefit is not benefit within the meaning of sections 88, 89 and 92

Section 93 IPC: Communication made in good faith

Corresponding provision: Section 31 BNS.

No communication made in good faith is an offence by reason of any harm to the person to whom it is made, if it is made for the benefit of that person.

Illustration

A, a surgeon, in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. A has committed no offence, though he knew it to be likely that the communication might cause the patient's death

Section 94 IPC: Act to which a person is compelled by threats

Corresponding provision: Section 32 BNS.

Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence: Provided the person doing the act did not of his own accord, or from a reasonable apprehension of harm to himself short of instant death, place himself in the situation by which he became subject to such constraint. Explanation 1.—A person who, of his own accord, or by reason of a threat of being beaten, joins a gang of dacoits, knowing their character, is not entitled to the benefit of this exception, on the ground of his having been compelled by his associates to do anything that is an offence by law. Explanation 2.—A person seized by a gang of dacoits, and forced, by threat of instant death, to do a thing which is an offence by law; for example, a smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception

Section 95 IPC: Act causing slight harm

Corresponding provision: Section 33 BNS.

Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm. Of the Right of Private Defence

Section 96 IPC: Things done in private defence

Corresponding provision: Section 34 BNS.

Nothing is an offence which is done in the exercise of the right of private defence

Section 97 IPC: Right of private defence of the body and of property

Corresponding provision: Section 35 BNS.

Every person has a right, subject to the restrictions contained in section 99, to defend— First.—His own body, and the body of any other person, against any offence affecting the human body; Secondly.—The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass

Section 98 IPC: Right of private defence against the act of a person of unsound mind, etc

Corresponding provision: Section 36 BNS.

When an act, which would otherwise be a certain offence, is not that offence, by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, or by reason of any misconception on the part of that person, every person has the same right of private defence against that act which he would have if the act were that offence.

Illustrations

(a) Z, under the influence of madness, attempts to kill A; Z is guilty of no offence. But A has the same right of private defence which he would have if Z were sane. (b) A enters by night a house which he is legally entitled to enter. Z, in good faith, taking A for a house-breaker, attacks A. Here Z, by attacking A under this misconception, commits no offence. But A has the same right of private defence against Z, which he would have if Z were not acting under that misconception

Section 99 IPC: Acts against which there is no right of private defence

Corresponding provision: Section 37 BNS.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act, may not be strictly justifiable by law. There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law. There is no right of private defence in cases in which there is time to have recourse to protection of the public authorities. Extent to which the right may be exercised.—The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence. Explanation 1.—A person is not deprived of the right of private defence against an act done, or attempted to be done, by a public servant, as such, unless he knows or has reason to believe, that the person doing the act is such public servant. Explanation 2.—A person is not deprived of the right of private defence against an act done, or attempted to be done, by the direction of a public servant, unless he knows, or has reason to believe, that the person doing the act is acting by such direction, or unless such person states the authority under which he acts, or if he has authority in writing, unless he produces such authority, if demanded

Section 100 IPC: When the right of private defence of the body extends to causing death

Corresponding provision: Section 38 BNS.

The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:— First.—Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault; Secondly.—Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault; Thirdly.—An assault with the intention of committing rape; Fourthly.—An assault with the intention of gratifying unnatural lust; Fifthly.—An assault with the intention of kidnapping or abducting; Sixthly.—An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release. [Seventhly.—An act of throwing or administering acid or an attempt to throw or administer acid which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act.]

Section 101 IPC: When such right extends to causing any harm other than death

Corresponding provision: Section 39 BNS.

If the offence be not of any of the descriptions enumerated in the last preceding section, the right of private defence of the body does not extend to the voluntary causing of death to the assailant, but does extend, under the restrictions mentioned in section 99, to the voluntary causing to the assailant of any harm other than death

Section 102 IPC: Commencement and continuance of the right of private defence of the body

Corresponding provision: Section 40 BNS.

The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as such apprehension of danger to the body continues

Section 103 IPC: When the right of private defence of property extends to causing death

Corresponding provision: Section 41 BNS.

The right of private defence of property extends, under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:— First.—Robbery; Secondly.—House-breaking by night; Thirdly.—Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property; Fourthly.—Theft, mischief, or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised. STATE AMENDMENTS Karnataka (1) In section 103, in clause Thirdly, — (i) after the words “mischief by fire”, the words “or any explosive substance” Shall be inserted; (ii) after the words “as a human dwelling, or” the words “as a place of worship, or” shall be inserted. (2) After clause Fourthly, the following clause shall be inserted namely:— “Fifthly.— Mischief by fire or any explosive substance committed on any property used or intended to be used for the purpose of Government or any local authority, statutory body or company owned or controlled by Government or railway or any vehicle used or adapted to be used for the carriage of passengers for hire or reward”. [Vide Karnataka Act 8 of 1972, sec. 2]

Section 104 IPC: When such right extends to causing any harm other than death

Corresponding provision: Section 42 BNS.

If the offence, the committing of which, or the attempting to commit which occasions the exercise of the right of private defence, be theft, mischief, or criminal trespass, not of any of the descriptions enumerated in the last preceding section, that right does not extend to the voluntary causing of death, but does extend, subject to the restrictions mentioned in section 99, to the voluntary causing to the wrong-doer of any harm other than death

Section 105 IPC: Commencement and continuance of the right of private defence of property

Corresponding provision: Section 43 BNS.

The right of private defence of property commences when a reasonable apprehension of danger to the property commences. The right of private defence of property against theft continues till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered. The right of private defence of property against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues. The right of private defence of property against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief. The right of private defence of property against house-breaking by night continues as long as the house trespass which has been begun by such house-breaking continues

Section 106 IPC: Right of private defence against deadly assault when there is risk of harm to innocent person

Corresponding provision: Section 44 BNS.

If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person, his right of private defence extends to the running of that risk.

Illustration

A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. A commits no offence if by so firing he harms any of the children

Key Points

- General Exceptions qualify offence definitions throughout the penal statute.
- Mistake must be of fact, not law, and the belief must satisfy the statutory good-faith standard.
- Accident requires a lawful act, lawful manner, lawful means, absence of criminal intention or knowledge, and proper care and caution.
- Necessity under IPC Section 81 and BNS Section 19 is fact-sensitive and requires good faith, no criminal intention to cause harm, and prevention of a sufficiently imminent greater harm.
- Children under seven have absolute immunity; a child above seven and under twelve is protected only if sufficiently immature on the occasion.
- Legal insanity concerns cognitive incapacity at the time of the act, not merely a medical diagnosis.
- Voluntary intoxication ordinarily does not erase attributed knowledge.
- Consent obtained through fear or misconception, or from a person lacking legal capacity, is ineffective.
- Private defence is preventive, proportionate and subject to statutory limits; it is not retaliation.

Legal References - Important Statutory Provisions

- Indian Penal Code, 1860 - Sections 76-95: General exceptions before private defence.
- Indian Penal Code, 1860 - Sections 96-106: Right of private defence.
- Bharatiya Nyaya Sanhita, 2023 - Sections 14-33: General exceptions before private defence.
- Bharatiya Nyaya Sanhita, 2023 - Sections 34-44: Right of private defence.
- Bharatiya Nyaya Sanhita, 2023 - Section 3(1): Every offence and penal provision is read subject to General Exceptions.
- Bharatiya Sakshya Adhinyam, 2023 - burden relating to facts bringing a case within an exception.
- Juvenile Justice (Care and Protection of Children) Act, 2015 - separate procedure governing children in conflict with law.

Exam Focus

Start with the prosecution's offence and then identify the exact exception. State every ingredient of that exception and apply facts to each ingredient. For private defence, analyse reasonable apprehension, commencement, continuance, proportionality, availability of public protection and whether the statute permits causing death. In comparative answers, use the direct Section 76-106 IPC to Section 14-44 BNS map, while noting the applicable law depends on the date of the alleged conduct.

Revision Notes

- IPC 76-106 map sequentially to BNS 14-44.
- Mistake of fact may excuse; mistake of law does not.
- Accident requires proper care and caution.
- Infancy rules remain under seven, and seven to under twelve with immature understanding.
- Unsoundness must prevent knowledge of the nature, wrongfulness or illegality of the act at the relevant time.
- Consent has statutory limits and cannot legalise independently criminal conduct.

- Compulsion does not excuse murder or the specified State offences punishable with death.
- Private defence lasts only while reasonable apprehension continues and cannot inflict more harm than necessary.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

Always check the official text, later amendments and binding judicial interpretation. This study material does not provide legal advice.